



Toughening the LAW

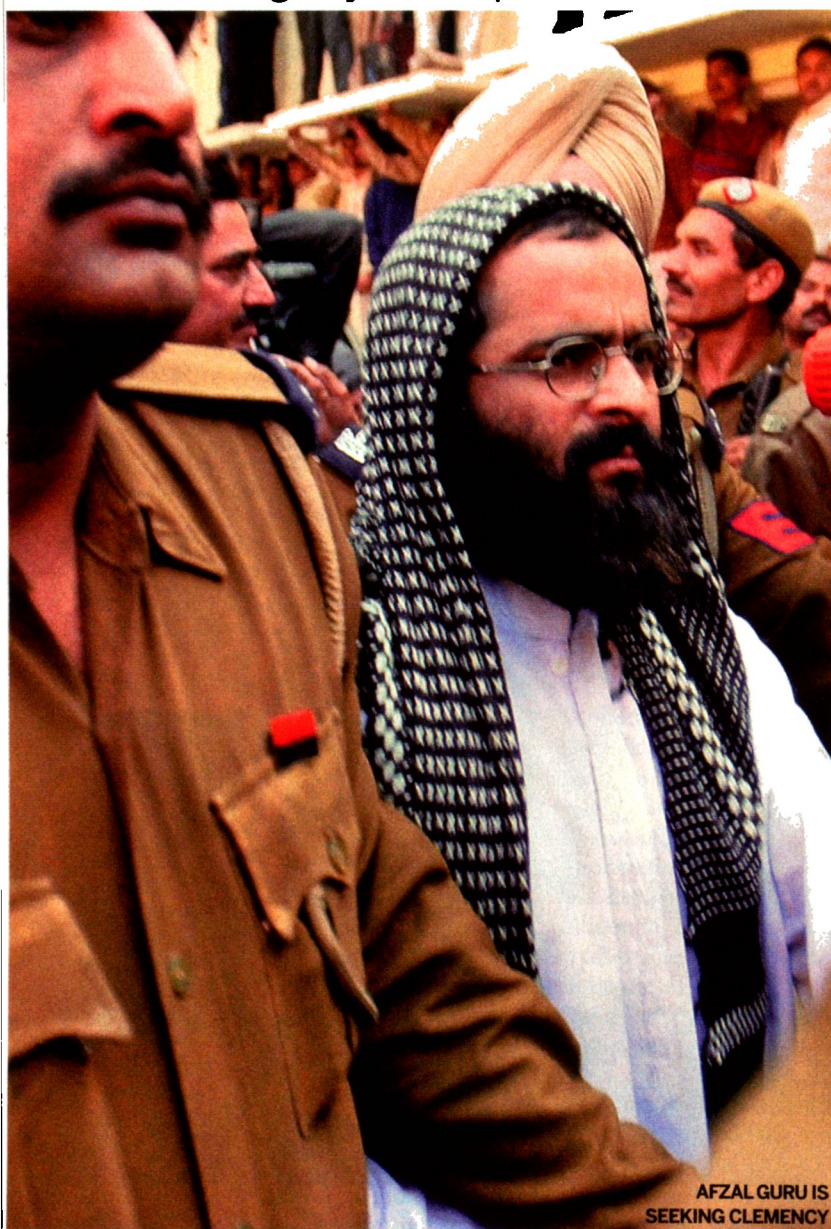
After years of dithering, the Government is mounting a strong response to terror through a federal agency and a replacement for POTA

By Bhavna Vij-Aurora

It's been the cause of a running battle between the Congress and the BJP, with the latter accusing the former of being soft on terror and pointing to the lack of will to reintroduce POTA (Prevention of Terrorism Act). Now, after the deadly terror strikes in Mumbai, there are signs of a change but it's still not clear what the outcome will be. Post-Mumbai, with the Ministry of Home Affairs busy giving final touches to the bill proposing a Federal Investigating Agency, there are suggestions from a section of the Government that it should take the form of a comprehensive permanent legislation—combining an anti-terror law and a Central anti-terror agency. Prime Minister Manmohan Singh has to take the final call on the issue.

So far the Government has been extremely reluctant to enact a new law, having vehemently opposed POTA, and repealing it in 2004 on grounds that it was misused for preventive detention and to fix political opponents than to fight terror. Under POTA, confessions made before the police were admissible as evidence in court, and so were phone taps. An accused could be held in custody for up to 180 days without charges being framed against him and he could not be released on bail without the consent of the public prosecutor or the judge recording that he was innocent. The UPA Government scrapped the law terming it draconian. It was current Home Minister P. Chidambaram who had introduced the country's first anti-terror law—Terrorists and Disruptive Activities Prevention Act in 1985—and there were allegations of its misuse too. Now, he is believed to be equally keen to enact another legislation to combat terrorism and is being backed by the Law Ministry, which is in favour of a strong USA Patriot Act-like law.

Clearly, the Mumbai attacks have strengthened the lobby which believes that existing laws are not enough to deal with terror attacks, which have become pan-India in nature. "Confessions made before the police have to be admissible as evidence in court. The confession can be recorded before a senior police officer—SP or above. The system can be made transparent with modern interrogation rooms and real-time recording," suggests senior advocate K.T.S. Tulsi. The advice is based on the fact that the investigators of 26/11 Mumbai attack cannot use arrested terrorist Ajmal Amir Kasab's statements as evidence in the case. "It is a wealth of information wasted. We can only use what he is



AFZAL GURU IS SEEKING CLEMENCY

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